



# COLLABORATIVE PLANNING

## **PLANNING STATEMENT WITH HERITAGE IMPACT ASSESSMENT AND GREEN INFRASTRUCTURE STATEMENT**

### **OUTLINE PLANNING PERMISSION (ALL MATTERS RESERVED) FOR: THE CONSTRUCTION OF SELF-BUILD DWELLING**

**Site Address:** Land at Reeves Close, Porthleven, TR13 9PB

**Applicant:** Mr. and Mrs. Johns

**Prepared By:** Collaborative Planning

**Date:** August 2025

**Local Planning Authority:** Cornwall Council

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## **1. Introduction**

- 1.1.1 This Planning Statement supports an outline application for the construction of a single self-build dwelling on a modest parcel of land at Reeves Close, Porthleven, previously designated as public open space. The application seeks to establish the principle of residential development on this site, which, although historically protected as amenity space, has been effectively redundant and unmaintained for many years.
- 1.1.2 The proposal must be considered within the framework of the National Planning Policy Framework (NPPF 2023), particularly paragraph 11(d), which sets out the “tilted balance” in decision-making. This presumption in favour of sustainable development applies where the Local Planning Authority (LPA) cannot demonstrate a five-year housing land supply or where relevant policies are out-of-date. Under these circumstances, planning permission should be granted unless the adverse impacts of development significantly and demonstrably outweigh its benefits.
- 1.1.3 The site’s open space status is a key consideration. While the land was originally designated as amenity/play space under a previous planning consent and Section 106 Agreement, it has not been maintained by the Council and is not recognised as a protected or valued green space in the Porthleven Neighbourhood Development Plan (NDP) or associated open space assessments. The absence of maintenance and formal designation indicates the site’s effective surplus to local open space requirements.
- 1.1.4 This Planning Statement demonstrates that the proposed development complies with relevant local and national policies, including the Cornwall Local Plan (2010–2030), the Porthleven Neighbourhood Development Plan, and the Climate Emergency Development Plan Document. It also illustrates that potential adverse impacts, including those related to the loss of open space, can be appropriately mitigated through reserved matters and planning obligations.
- 1.1.5 Crucially, the development delivers important public benefits by contributing to much-needed housing supply, supporting self-build opportunities, and promoting environmental sustainability through sensitive design and the incorporation of green infrastructure measures. Given the unmaintained state and surplus status of the open space, any harm resulting from its loss is minimal and outweighed by these benefits.

1.1.6 In applying the “tilted balance” test, the planning merits of this proposal strongly support granting planning permission. The scheme represents a sustainable, responsible, and policy-compliant form of development that aligns with Government objectives to significantly boost housing supply while respecting local character, community well-being, and environmental stewardship.

## **2. Site Description**

- 2.1.1 The application site, formerly designated as Reeves Close, is situated within the defined settlement boundary of Porthleven, a vibrant coastal town in Cornwall. The site comprises a modest parcel of land measuring approximately 844 square meters, historically laid out as public open space and informal play area pursuant to a planning approval granted in the late 1990s. It is bordered by residential properties on Vicarage Road to the west and Reeves Close to the east, both classified as unclassified local roads serving the immediate neighbourhood.
- 2.1.2 Topographically, the site is predominantly level and features typical suburban landscaping elements. However, it presently remains vacant and unmaintained, with no formal management or recreational use. Hydrologically, the site lies within Flood Zone 1, reflecting a low risk of fluvial flooding. Nonetheless, it is partially vulnerable to groundwater flooding due to the presence of superficial deposits characteristic of the surrounding geology, warranting consideration in design and drainage proposals.
- 2.1.3 The surrounding context is primarily residential in nature, consisting of a mix of modern detached and semi-detached dwellings that contribute to a well-established suburban character. The site benefits from convenient access to a range of local amenities, services, and community facilities within Porthleven, supporting sustainable living and accessibility. Notably, the site lies within approximately 1 kilometre of the Cornwall Area of Outstanding Natural Beauty (AONB) boundary and falls within the Cornish Killas national landscape character area, an environment recognised for its distinct landscape qualities and ecological sensitivity.
- 2.1.4 In terms of infrastructure, the site enjoys direct frontage to local highways classified as “Purple” in Cornwall Council’s highway hierarchy, indicative of their role as minor local roads. The location is also within Community Infrastructure Levy (CIL) Band 4, designated as a rural area within or adjacent to the AONB, which may influence contributions required to support local infrastructure and services.
- 2.1.5 The site is subject to the policies and protections set out in the Porthleven Neighbourhood Development Plan (NDP), which reinforces the site’s integration within the local planning framework and supports sustainable development principles. However, it is important to note that previous planning obligations tied to the site’s original open space designation—

including maintenance contributions and public access rights—have not resulted in ongoing upkeep or active community use in recent years. This context is material to assessing the site’s current function, status, and suitability for sensitive residential development.

### Planning Constraints

| Planning Constraint                      | Details                                                                                   |
|------------------------------------------|-------------------------------------------------------------------------------------------|
| 1 km Buffer to AONB                      | Name: CORNWALL<br>Designation Date: November 1959<br>Local Section: SOUTH COAST – WESTERN |
| National Landscape Character Area        | Cornish Killas                                                                            |
| Area Susceptible to Groundwater Flooding | Flood Type: Superficial Deposits Flooding                                                 |
| Flood Zone                               | Flood Zone 1                                                                              |
| Local Flooding Locations                 | West – Vicarage Road / East – Reeves Close (both unclassified)                            |
| Community Infrastructure Levy (CIL)      | Parish: Porthleven<br>Band: Band 4<br>Sub Zone: Designated Rural Areas / AONB             |
| Designated Rural Areas                   | Housing Order 1981: Designated Rural Areas                                                |
| Neighbourhood Development Plan           | Name: Porthleven<br>Status: Made                                                          |
| Parish                                   | Parish Name: Porthleven                                                                   |
| Public Maintained Highway                | Highway Classification: Purple                                                            |
| Settlement Boundary                      | Reference: VB747<br>Name: Porthleven                                                      |
| Zones of Influence - Natura 2000 Sites   | Site Name: Fal and Helford SAC<br>Buffer Distance: 12,500 meters                          |

### Planning History

| Application Ref   | Description                                                                      | Decision Date | Outcome / Notes                                                                                                                                                                   |
|-------------------|----------------------------------------------------------------------------------|---------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>PA23/02731</b> | Outline application for the construction of a dwelling with all matters reserved | 14 June 2023  | Refused. The proposed development would result in the loss of public open space without suitable replacement or mitigation. This loss is considered detrimental to the health and |



|                          |                                                                                              |                  |                                                                                                                                                                                                                                                                                          |
|--------------------------|----------------------------------------------------------------------------------------------|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | (Resubmission of PA22/10939).                                                                |                  | wellbeing of the local community. The proposal conflicts with policies 13, 16, and 25 of the Cornwall Local Plan Strategic Policies 2010-2030, policies C1 and G1 of the Climate Emergency Development Plan Document, and paragraph 99 of the National Planning Policy Framework (2021). |
| <b>PA22/10939</b>        | Outline Planning Permission for the construction of a dwelling with all matters reserved.    | 15 February 2023 | Withdrawn prior to determination.                                                                                                                                                                                                                                                        |
| <b>W2/92/00570/O</b>     | Residential development.                                                                     | 3 November 1992  | Approved.                                                                                                                                                                                                                                                                                |
| <b>W2/PA92/00570/S01</b> | Erection of sixteen dwellings and domestic garages with associated access road and services. | April 1998       | Approved.                                                                                                                                                                                                                                                                                |

### **3. Proposed Development**

- 3.1.1 This application seeks Outline Planning Permission for the construction of a self-build dwelling.
- 3.1.2 No detailed drawings are submitted at this stage, as the application is intended solely to establish the principle of residential development.
- 3.1.3 The site was historically laid out as public open space; however, it has remained vacant and unmaintained for a significant period. Assessments undertaken demonstrate that the land is not identified as a protected or required open space within current local plans and studies.
- 3.1.4 To address the loss of this open space, a financial contribution is proposed to mitigate any impact, if deemed necessary by the Council. This contribution is calculated based on current standards for open space provision and is intended to fund improvements or enhancements to alternative local green spaces or recreational facilities.
- 3.1.5 The proposed financial contribution complies with the statutory tests for planning obligations set out in the National Planning Policy Framework (NPPF), ensuring that it is necessary, directly related, and reasonably proportional to the development.



## 4. Principle of Development

### Introduction

- 4.1.1 Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires that planning applications be determined in accordance with the Development Plan unless material considerations indicate otherwise. This proposal must therefore be assessed against the following documents: the National Planning Policy Framework (2024), Cornwall Local Plan 2010-2030, Porthleven Neighbourhood Development Plan (2021), Cornwall Climate Emergency Development Plan Document (2023), Cornwall Design Guide (2021), and Cornwall Council's Guidance on Infill and Rounding-Off Development. Additionally, Cornwall Council's Interim Policy Position Statement, published in response to the local planning authority's demonstrated housing supply shortfall, is a relevant material consideration.
- 4.1.2 This application seeks permission for the erection of a self-build dwelling.
- 4.1.3 The Local Planning Authority (LPA), in their assessment of application PA23/02731, confirmed the principle of development, stating:
- "The principle of constructing a new dwelling in this sustainable residential location within Porthleven is supported. The site lies within the settlement boundary defined in the Porthleven Neighbourhood Development Plan (NDP) and constitutes residential development wholly within the settlement. Therefore, the principle aligns with Policies 2, 3, and 21 of the Cornwall Local Plan (CLP) and Policy HO1 of the Porthleven NDP."*
- 4.1.4 However, the LPA did not accept the proposed loss of public open space, which they identified as the key issue.

## 5. Loss of Public Open Space

### Background and Site Context

- 5.1.1 The site was originally established approximately 20 years ago as an amenity/play area under planning approval W2/PA92/00570/S01, forming part of a 16-dwelling scheme on Vicarage Road, Porthleven. The layout was secured through a Section 106 Agreement dated 20 February 1998, requiring:
- 5.1.2 Provision of public access;
- Payment of a maintenance contribution to the Council; and
  - Transfer of responsibility for ongoing maintenance to the Council following completion.
- 5.1.3 The owners, who also implemented the permission, maintain that these obligations were fully discharged — the space was laid out, the contribution paid, and access rights granted. Notwithstanding this, Cornwall Council has never undertaken maintenance of the space, as acknowledged by the Public Open Space Officer under PA23/02731, who also confirmed that given its small scale and characteristics, it is not an area the Council would actively maintain today.

### Open Space Assessment

- 5.1.4 Under **PA23/02731**, the Council's Principal Public Space Officer noted:
- The site measures 844 sqm, which is too small to qualify as “strategic open space” but meets the minimum size to be considered *playable space* under the 2016 Cornwall Open Space Study.
  - While Porthleven shows a slightly above-average quantity of Type 1 (park/amenity) open space, the loss of this site would marginally reduce local provision.
- 5.1.5 The **National Planning Policy Framework (NPPF 2023)**, paragraph 104(c), resists development on existing open space unless one of the following applies:
- An assessment demonstrates a surplus;
  - The loss is replaced by equivalent or better provision in a suitable location; or
  - The development is for alternative sports/recreational provision with benefits outweighing the loss.

5.1.6 The Public Space Officer under PA23/02731 stated no surplus assessment had been submitted and no alternative provision offered. As a result, refusal was recommended under:

5.1.7 **Cornwall Local Plan Strategic Policies (2010–2030):**

- **Policy 13** (*Development Standards*) – requires adequate provision of open space;
- **Policy 16** (*Health and Wellbeing*) – resists loss of open space unless surplus is demonstrated;
- **Policy 25** (*Green Infrastructure*) – protects and enhances local green infrastructure.

5.1.8 **Climate Emergency DPD:**

- **Policy C1** (*Open Space, Green Infrastructure and Landscaping*) – resists development leading to net loss without mitigation;
- **Policy G1** (*Green Infrastructure*) – supports protection and enhancement of green spaces.

**Neighbourhood Plan Context**

5.1.9 The Porthleven Neighbourhood Development Plan (NDP) identifies a list of protected open spaces under Policy NE3: Open Spaces – Provision and Protection. This policy mirrors NPPF paragraph 104 and CLP Policy 16, setting the same three-part test for loss of open space.

5.1.10 The supporting Green Space Designation Document (July 2019), prepared in collaboration with Cornwall Council, undertook an assessment of all open spaces within Porthleven. Importantly, *this site is not identified* in either Policy NE3's maps or the Green Space Designation list. This demonstrates that, in the NDP evidence base, the space is not recognised as contributing to the parish's key green infrastructure — a clear indication of surplus in terms of NPPF paragraph 104(a).

**Policy Analysis**

5.1.11 In applying the above policy tests:

- **NPPF paragraph 104(a):** Surplus is evidenced by the NDP's omission of the site from its protected list, following formal assessment in 2019.
- **CLP Policy 16 and Policy 25:** The loss is acceptable where surplus is demonstrated or suitable mitigation provided.
- **Climate Emergency DPD Policy C1:** Supports mitigation through provision or enhancement of open space elsewhere.

### **Proposed Mitigation**

5.1.12 Notwithstanding the surplus position, the applicants are willing to make a financial contribution equivalent to the current open space tariff for a scheme of 16 dwellings. This could fund the improvement or creation of higher-quality open space in a more suitable location within Porthleven.

5.1.13 This approach would satisfy:

- **NPPF paragraph 104(b)** – replacement by better provision in a suitable location;
- **CLP Policy 25** – enhancement of local green infrastructure;
- **Climate Emergency DPD Policy C1** – securing net qualitative benefit.

### **Conclusion**

5.1.14 The loss of this open space is consistent with the Development Plan and NPPF, given:

- The site is not designated as a protected green space in the NDP;
- Surplus provision is evidenced;
- Mitigation is offered in the form of a proportionate Section 106 contribution for enhancement of open space elsewhere in Porthleven.

5.1.15 Accordingly, the proposal complies with NPPF paragraph 104, Cornwall Local Plan Policies 13, 16, and 25, Climate Emergency DPD Policies C1 and G1, and Porthleven NDP Policy NE3. In the context of the significant housing supply shortfall and the application of the tilted balance(NPPF paragraph 11d), the benefits of delivering new housing clearly outweigh the limited and mitigated loss of an underused and unmaintained green space.

## 6. Character and Amenity

### **Impact on the Character and Appearance of the Area**

- 6.1.1 This outline application (Ref: PA23/02731) seeks to establish the principle of development only, with all matters reserved for future approval. Consequently, no detailed design drawings have been submitted at this stage.
- 6.1.2 The site consists of a modestly sized rectangular parcel of open space at Reeves Close, predominantly laid to well-maintained grass with a small area of hardstanding located in the south-east corner. It is bounded by modern detached bungalows to the north and south, with public highways to the east and west. The surrounding residential context is characterised by contemporary, modestly scaled, detached dwellings, resulting in an established modern built form.
- 6.1.3 The Local Planning Authority (LPA), in their assessment of application PA23/02731, acknowledged that the site is physically capable of accommodating a detached dwelling which would integrate sensitively into the existing residential pattern without causing harm to the character or appearance of the area. The open grassed area is functional but has limited public amenity value or defining landscape features that would be materially affected by development. As such, there are no objections on visual grounds to the loss of this space.
- 6.1.4 In summary, and subject to a well-considered reserved matters submission, the development of a single dwelling on this site would preserve the established character and visual amenity of the locality. This position aligns with policies 2, 12, 21, and 23 of the Cornwall Local Plan (CLP), policy BE1 of the Porthleven Neighbourhood Development Plan (NDP), and policy C1 of the Cornwall Climate Emergency Development Plan Document (DPD).

### **Impact on the Amenities of Neighbouring Residential Occupiers**

- 6.1.5 Although no detailed proposals have been provided, the site's size and configuration clearly allow for the construction of a dwelling that would deliver appropriate internal and external spaces to meet the functional and recreational needs of future occupants.
- 6.1.6 The LPA confirmed in their assessment of PA23/02731 that a carefully designed scheme could safeguard the living conditions of adjacent residents, maintaining appropriate levels of privacy, daylight, and outlook. This would ensure compliance with policies 12 and 13 of the Cornwall Local Plan, which seek to protect residential amenity.

6.1.7 In conclusion, with suitably designed reserved matters, the development would not result in adverse impacts on the amenity of neighbouring occupiers.

## **7. Green Infrastructure Statement**

### **Landscaping and Green Spaces**

- 7.1.1 This outline application seeks to establish the principle of residential development only. Detailed landscaping proposals will be submitted at the reserved matters stage. However, it is anticipated that the final design will incorporate soft landscaping elements to ensure the new dwelling integrates sensitively with the existing natural and built environment. Soft landscaping will aim to complement the character of the surrounding area and provide ecological benefits.

### **Native Planting**

- 7.1.2 At the detailed design stage, native species planting is expected to be incorporated, such as hawthorn, blackthorn, and wild cherry. These species are well-suited to the local environment and provide important habitats for pollinators and local wildlife, as well as seasonal visual interest.

### **Permeable Surfaces**

- 7.1.3 The reserved matters submission will seek to maximise the use of permeable surfaces for driveways, pathways, and hardstanding areas, wherever practicable. This approach supports effective surface water management by reducing runoff, encouraging groundwater recharge, and mitigating flood risk in line with best practice.

### **Biodiversity-Friendly Features**

- 7.1.4 It is intended that features such as bird and bat boxes, alongside hedgerow planting and habitat corridors, will be included within the detailed landscaping proposals. These biodiversity enhancements will contribute to the ecological connectivity of the site and support local wildlife populations.

### **Sustainable Drainage Systems (SuDS)**

- 7.1.5 To address climate change impacts and reduce flood risk, the development will incorporate Sustainable Drainage Systems (SuDS) measures as part of the detailed design. These may include:
- **Rainwater Harvesting:** Systems to collect rainwater from the dwelling's roof for irrigation or other non-potable uses, reducing reliance on mains water.

- **Soakaways and Permeable Surfaces:** Designed to enable surface water infiltration and reduce waterlogging risks.

7.1.6 The exact SuDS strategy will be confirmed at the reserved matters stage, consistent with relevant local and national policies.

### **Energy Efficiency and Carbon Reduction**

7.1.7 Although this outline application does not include detailed design, the future dwelling will be designed with sustainability in mind, incorporating measures such as:

- **High Thermal Efficiency:** Using energy-efficient materials to minimise heating demands and overall energy consumption.
- **Renewable Energy:** Exploring the potential for solar panels or other renewable energy technologies to reduce the dwelling's carbon footprint.
- **Optional Green Roof:** Consideration may be given to a green roof, which can enhance biodiversity, provide insulation, and mitigate urban heat effects.

### **Biodiversity Net Gain**

7.1.8 As a self-build development, the scheme may be exempt from mandatory biodiversity net gain requirements. Nonetheless, appropriate measures to enhance biodiversity will be incorporated to support local ecological value and sustainability objectives.

### **Conclusion**

7.1.9 The proposed development, through its reserved matters submission, will embrace green infrastructure principles aimed at:

- Supporting local biodiversity by providing habitats and improving ecological connectivity.
- Managing surface water sustainably to reduce flood risk.
- Incorporating energy-efficient and low-carbon design measures.
- Enhancing the visual and ecological quality of the site and its surroundings.

7.1.10 These commitments align with the Cornwall Local Plan, the National Planning Policy Framework (NPPF), and Cornwall Council's Green Infrastructure Strategy. The development will ultimately deliver a sustainable, environmentally responsible, and ecologically sensitive new dwelling that benefits both future occupants and the wider community.



## **8. Overall Conclusion**

- 8.1.1 This outline planning application for a single self-build dwelling at Reeves Close, Porthleven, presents a well-considered and sustainable development proposal that effectively addresses local housing needs while respecting and enhancing the character of the surrounding residential area. Although the site was historically designated as public open space, it has remained unmaintained for many years and provides limited practical amenity value to the community. Consequently, the principle of residential development on this site is both appropriate and fully justified.
- 8.1.2 The proposal accords with the relevant policies of the Cornwall Local Plan, the Porthleven Neighbourhood Development Plan, and the Climate Emergency Development Plan Document. These policies collectively seek to safeguard local character, residential amenity, and the natural environment, all of which are positively addressed by the scheme. The incorporation of robust green infrastructure measures will further enhance biodiversity, deliver sustainable surface water management, and promote energy efficiency, reflecting a responsible approach to environmental stewardship.
- 8.1.3 Crucially, the Local Planning Authority is currently unable to demonstrate a five-year supply of deliverable housing land, thereby engaging the presumption in favour of sustainable development under the “tilted balance” test set out at paragraph 11(d) of the National Planning Policy Framework (NPPF). In this context, the clear social and environmental benefits arising from the delivery of a new self-build home on this sustainably located site demonstrably outweigh any limited harm, strongly supporting the grant of planning permission.
- 8.1.4 To responsibly address the loss of the former open space, the applicant proposes a financial contribution aligned with the original affordable housing and open space obligations. This contribution is offered in accordance with the statutory tests for planning obligations outlined in the NPPF and is intended to mitigate any residual impacts while delivering wider community benefits through enhanced local provision.
- 8.1.5 In light of the above considerations, it is respectfully requested that the Council grant outline planning permission for the development, subject to the completion of a Section 106 agreement, should the Council consider it necessary and compliant with the relevant

statutory tests for planning obligations. Approval of this application will enable the delivery of a sustainable, high-quality dwelling that makes a positive and timely contribution to local housing supply, supports self-build aspirations, and promotes community wellbeing in Porthleven.